

M/S Rana Concast Ltd. v. M.D. P.V.V.N.L. And Another

High Court of Judicature at Allahabad · Division Bench · 15 November 2018 · Writ-C No. 52115 of 2008 · **Writ dismissed following Dev Prayag Paper Mill**

HEADNOTE

A writ challenging an additional-security demand and the vires of clause (1) of para 4.20 of the Electricity Supply Code, 2005 (licensee's 'choice to opt' language) as contrary to s.47(5) of the Electricity Act, 2003 is dismissed in terms of Dev Prayag Paper Mill (Writ-C No. 30898 of 2016, 21.3.2017).

FACTUAL SUMMARY

M/s Rana Concast Ltd. filed a writ against M.D., P.V.V.N.L. over a demand for additional security for electricity supply, warning of action if unpaid within the stipulated period. The petitioner also challenged clause (1) of para 4.20 of the Electricity Supply Code, 2005, insofar as it provides that the distribution licensee may give the consumer a choice to opt, as ultra vires s.47(5) of the Electricity Act, 2003. Counsel stated identical matters had already been dismissed in Dev Prayag Paper Mill, then pending in the Supreme Court.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

additional security; 4.20(1) vires vis-à-vis EA s.47(5)

HOLDING

A writ challenging a demand for additional security and clause (1) of para 4.20 of the Electricity Supply Code, 2005 — the words 'as and when the distribution licence provides a choice to consumer to opt' — as ultra vires s.47(5) of the Electricity Act, 2003, is dismissed in terms of the judgment dated 21.3.2017 in Writ-C No. 30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) v. State of U.P.). ¶ 1

PRINCIPLE TAGS

additional-security A writ challenging an additional-security demand and the vires of clause (1) of para 4.20 of the Electricity Supply Code, 2005 (licensee's 'choice to opt' language) as contrary to s.47(5) of the Electricity Act, 2003 is dismissed in terms of Dev Prayag Paper Mill (Writ-C No. 30898 of 2016, 21.3.2017). ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
M/S Dev Prayag Paper Mill (Pvt.) v. State of U.P. Writ-C No. 30898 of 2016 (21.3.2017)			Court	Referred